JUSTICE BARRETT, dissenting.

The Court chooses to answer a series of difficult merits questions, most of which were not addressed by the D. C. Circuit below or almost any other court before today. See *ante*, at 596 (ALITO, J., dissenting). What kind of "cause" must the President assert before he can remove Lisa Cook from the Board of Governors of the Federal Reserve? Does the statute require that he afford her process? If so, what kind? Can she challenge her removal by asserting an ultra vires claim? May a court issue a preliminary injunction to keep her in office during the litigation? And then, the biggest issue: Is the removal restriction in the Federal Reserve Act constitutional?

All these questions are complicated and important, but the last is in a league of its own. And unlike the other issues, the constitutional status of the Federal Reserve is entirely outside the scope of this case. The Government expressly waived any constitutional challenge to the removal restriction, so the parties did not brief it. Application 2, n. 1 ("This application does not contest the constitutionality of the Federal Reserve Board's for-cause removal provision"); see also Reply Brief 13; Supp. Brief for Applicant 1. And the lower courts approached this case from the start on the assumption that the removal restriction is consistent with Article II. We ordinarily do not jump ahead of the lower courts to decide waived issues. See *Cutter* v. *Wilkinson*, 544 U. S. 709, 718, n. 7 (2005); cf. *Trump* v. *Illinois*, 607 U. S. —— (2025) (reaching an issue of statutory interpretation decided by the District Court and addressed by the parties in supplemental briefing). Nonetheless, the Court raises and settles the constitutional issue—and does so based on a conclusory analogy to the First and Second Banks of the United States. *Ante*, at 554–556.

Even assuming that the Court is right on the merits, the issue warrants much more than a few paragraphs. As JUSTICE THOMAS points out, the differences between the Fed-

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eral Reserve and our early national banks are more significant than the majority lets on. *Ante*, at 566–570, 590 (dissenting opinion); see also A. Bamzai & A. Nielson, Article II and the Federal Reserve, 109 Cornell L. Rev. 843, 905–908 (2024); L. Menand, The Unitary Executive and the Federal Reserve, 94 Ford. L. Rev. 2089, 2119–2121 (2026). And the Court's holding is in serious tension with *Trump* v. *Slaughter*, which we also decide today. 609 U. S. 422 (2026). *Slaughter* announces a categorical rule: Whenever "an agency 'executes' a congressional mandate against private parties, it exercises executive power" and must be subject to plenary executive control—"no ifs, ands, or quasis about it." *Id.*, at 451. Yet here, the Court claims a special exception "'sanctioned by history'" and based on the Federal Reserve's role in setting monetary policy. *Ante*, at 557. How can history support both a categorical rule and a carveout? See *Slaughter*, 609 U. S., at 524–525 (SOTOMAYOR, J., dissenting). Do all the Federal Reserve's existing regulatory powers have the requisite connection to monetary policy? If not, are they grandfathered in? Cf. *ante*, at 555, n. 6 (opinion of the Court) ("In upholding the constitutionality of the Federal Reserve as currently structured and with its existing enforcement authorities, we do not suggest that Congress could assign the Federal Reserve *additional* regulatory powers that are attenuated from monetary policy" (emphasis added)). And is the Federal Reserve unique, or might history sanction other exceptions too? The Court does not say.

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For present purposes, though, the most significant problem is that the Court decides this issue at all—not to mention the many others covered in its opinion. While a modest approach would have been appropriate, the Court chooses to go big. Its opinion sets precedent on a series of important issues, with implications that extend well beyond this case.

I agree with JUSTICE ALITO that the Court should have limited itself to the issues supporting the District Court's

injunction. *Ante*, at 599–600 (dissenting opinion). Addressing these errors would have permitted the litigation to proceed, and the lower courts could have taken first cut at the many other difficult and novel legal issues. Had the Court declined to go further, it may never have needed to reach those other issues anyway. For instance, if the President ultimately satisfied the Federal Reserve Act, 12 U. S. C. §242, the Court may never have needed to address whether Cook could assert an ultra vires claim.

Putting aside my difficulties with the opinion's scope, there is a disconnect between its holding and its disposition line. The Court does not rule out mortgage fraud as sufficient cause for removal under §242; instead, it denies a stay on the "narrow groun[d]" that the President has not yet provided Cook enough process. *Ante*, at 550. The President remains free to "tr[y] again," the Court says, so long as he gives Cook proper notice and an opportunity to respond. *Ante*, at 558–559, and n. 8.

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But if the Court wanted to leave the President in that position, it should not have denied the stay. Recall that the District Court held that Cook's alleged mortgage fraud, as pre-office conduct, does not constitute cause for removal under §242. 804 F. Supp. 3d 14, 30 (DC 2025) ("[T]he Court finds that permissible cause for removal of a Federal Reserve Governor extends only to concerns about the Board member's ability to effectively and faithfully execute their statutory duties, in light of events that have occurred while they are in office"). So it entered a preliminary injunction barring defendants Jerome Powell and the Board of Governors "from effectuating in any manner Plaintiff's removal from her position as a member of the Board of Governors *on the basis of the grounds stated in the President's letter of August 25, 2025*." App. to Application 23a (emphasis added). The President's letter clearly stated those "grounds": "[T]here is sufficient reason to believe you may have made false statements on one or more mortgage agreements."

See Complaint in No. 1:25–cv–02903 (D DC), ECF Doc. 1–3, Exh. B, p. 2. As it stands, then, the President has no way to remove Cook for her alleged mortgage fraud. That is true even if he gives Cook a full-blown judicial trial (process far exceeding what the Court requires, *ante*, at 551–552), and satisfies the Court's "substantial threshold for 'cause'" (by demonstrating that the mortgage fraud truly implies an unfitness for the office, *ante*, at 547).

To get around this problem, the Court adopts an implausibly narrow reading of the injunction: It interprets the injunction "to forbid the implementation of 'the President's letter of August 25' in which he purported to fire Cook—but not to forbid the President from trying again, if he chooses to do so." *Ante*, at 558, n. 8. In other words, the injunction stops the President from "firing her by that letter," not "firing her for mortgage fraud." But that is simply not what the injunction says. It forbids Cook's removal based on "the grounds" stated in the President's August 25th letter—*i. e.*, mortgage fraud. And the D. C. Circuit's order denying the stay left that broad injunction in place—as does the Court's.

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We have repeatedly found that the President suffers irreparable harm when he is barred from firing a subordinate. See *Trump* v. *Wilcox*, 605 U. S. 922, 922–923 (2025); *Trump* v. *Boyle*, 606 U. S. 989, 989–990 (2025). In my view, that harm is somewhat lessened here because the Government has conceded for purposes of this litigation that the President cannot remove Cook or any other member of the Board of Governors for policy reasons. See Application 26. Still, the District Court's order blocks the President from removing Cook for mortgage fraud, and that is so even if he satisfies the requirements that the Court's opinion sets out. Under our precedent, that significant interference with the President's removal authority clears the "irreparable harm" threshold.

For these reasons, I respectfully dissent from the denial of the stay application.